

BLACKMUN, J., dissenting

principles of collateral estoppel, these agencies are precluded from subsequently relitigating the issues decided in this suit.

“[O]ne who prosecutes or defends a suit in the name of another to establish and protect his own right, or who assists in the prosecution or defense of an action in aid of some interest of his own, and who does this openly to the knowledge of the opposing party, is as much bound by the judgment and as fully entitled to avail himself of it as an estoppel against an adverse party, as he would be if he had been a party to the record.” *Souffront v. Compagnie des Sucreries de Porto Rico*, 217 U. S. 475, 487 (1910).

This principle applies even to the Federal Government. In *Montana v. United States*, 440 U. S. 147 (1979), this Court held that the Government was estopped from relitigating in federal court the constitutionality of Montana’s gross receipts tax, because that issue previously had been litigated in state court by an individual contractor whose litigation had been financed and controlled by the Federal Government. “Thus, although not a party, the United States plainly had a sufficient ‘laboring oar’ in the conduct of the state-court litigation to actuate principles of estoppel.” *Id.*, at 155. See also *United States v. Mendoza*, 464 U. S. 154, 164, n. 9 (1984) (Federal Government estopped where it “constituted a ‘party’ in all but a technical sense”). In my view, the action agencies have had sufficient “laboring oars” in this litigation since its inception to be bound from subsequent

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entered a formal appearance before the District Court on behalf of AID. On at least one occasion petitioner requested an extension of time to file a brief, representing that “[a]n extension is necessary for the Department of Justice to consult with . . . the Department of State [on] the brief.” See Brief for Respondents 31, n. 8. In addition, AID officials have offered testimony in this action.